

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
RONNIE ERO,

SUMMONS

Plaintiff,

Index No.
Purchased:

-against-

CITY OF NEW YORK, MIGUEL VANBRAKLE, and
JOHN or JANE DOE 1-10,

Plaintiff Designates Queens County
as the Proper Venue for Trial

Defendants.

Venue is Based on Where the Causes
of Action Arose.

-----X
TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff’s Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
July 23, 2024

SIM & DEPAOLA, LLP
Attorneys-at-Law
42-40 Bell Boulevard – Suite 405
Bayside, New York 11361
(718) 281-0400

/s/ Sameer Nath
Sameer Nath, Esq.
Attorneys for Plaintiff

TO: **CITY OF NEW YORK**

Via Corporation Counsel of the City of New York

100 Church Street

New York, New York 10007

MIGUEL VANBRAKLE

Shield No. 28743, Tax No. 955616

Via 105th NYPD Precinct

92-08 222nd Street

Queens, NY 11428

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
RONNIE ERO,

Index No.

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, MIGUEL VANBRAKLE, and
JOHN or JANE DOE 1-10,

Defendants.
-----X

Plaintiff, **RONNIE ERO**, by and through the undersigned attorneys, **SIM & DEPAOLA, LLP**, for his complaint against the Defendants, **CITY OF NEW YORK, MIGUEL VANBRAKLE**, and **JOHN or JANE DOE 1 - 10**, alleges and states as follows:

1. This is a civil rights action, in which Plaintiff seeks relief *vis-à-vis* 42 U.S.C. §§ 1981, 1983, 1985, 1986 and 1988, the laws of the City and State of New York, including but not limited to New York City Human Rights Law under NYC Admin Code §§ 8-801 – 8-806, in addition to the self-executing clauses or implied private causes of action within the constitution of State of New York, for the violations of his civil rights, as enumerated by the First, Fourth, Fifth, Sixth, Eighth and Fourteenth Amendments to the Constitution of the United States, the New York State Constitution, in addition to the Laws of the City and State of New York.

2. The following claims arose on or about November 18, 2022, when defendants, acting under color of state law, caused Plaintiff to be unlawfully stopped, questioned, searched, battered and assaulted, arrested and detained in the vicinity of the building located at 223-24 106th Avenue Queens, New York. As a result, Plaintiff was deprived of his liberty and suffered various physical, emotional and psychological injuries in addition to violations of his civil and constitutional rights. Plaintiff was wrongfully detained over the course of more than one (1) month until his release

from physical custody. Plaintiff was maliciously prosecuted and denied Due Process and Equal Protection of the law, until all criminal charges under were unconditionally dismissed and sealed on or about April 26, 2023, pursuant to §§ 160.50 and 160.60 of the Criminal Procedure Law which constituted a termination of the criminal proceedings in favor of Plaintiff.

3. At all times here mentioned, defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

4. Plaintiff has timely served the City of New York, Office of the Comptroller, with notice of his claims within 90 days of the date(s) from which they arose.

5. Over 30 days have elapsed since the filing of the Notice of Claim and this matter has not been adjusted or settled.

6. Under New York City Human Rights Law under NYC Admin Code §§ 8-801 – 8-806, the Plaintiff is not required to file his Notice of Claim or submit to an oral examination pursuant to section 50-H of the New York General Municipal Law.

7. This action and associated claims have been filed within the applicable statute of limitations.

8. Plaintiff seeks monetary damages (compensatory and punitive) against defendants, an award of costs and reasonable attorney's fees, with all interest then accrued, together with such other or further relief, as this venerable Court may deem just and proper.

PARTIES

9. At all relevant times herein, Plaintiff, RONNIE ERO, is an adult Hispanic male, who resides in Queens, New York.

10. Defendant CITY OR NEW YORK (“City”) is a municipal corporation duly organized and existing, under the laws of the State of New York.

11. At all relevant times herein, the NEW YORK CITY POLICE DEPARTMENT (“NYPD”) was a wholly owned subsidiary which was further wholly operated, managed, maintained, and controlled by Defendant City.

12. At all relevant times herein, Defendant City, acting through its NYPD, was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, screening, hiring, training, supervision, discipline, retention and conduct of all NYPD personnel, including police officers, detectives, investigators, sergeants, lieutenants, captains, correctional officers, and other supervisory officers or officials, as well as the individually named NYPD Defendants herein.

13. At all relevant times herein, Defendant City was responsible for enforcing the rules and regulations of the NYPD and for ensuring that the NYPD personnel obey the laws and constitutions and laws of the United States, State of New York, and City of New York.

14. At all relevant times herein, Defendant, MIGUEL VANBRAKLE (“VANBRAKLE”), was a police officer, supervisor or policy maker employed by the NYPD under Shield No. 28743, Tax No. 955616, and as such, was acting in the capacity of an agent, servant and employee of Defendant City. Upon information and belief, Defendant VANBRAKLE is currently assigned to the 105th NYPD Precinct. Defendant VANBRAKLE is being sued in his individual and official capacities.

15. At all relevant times herein, Defendants JOHN or JANE DOE 1-10 were police officers, supervisors, policymakers or officials employed by the NYPD or City of New York. At this time,

Plaintiff does not know the true names or tax registry numbers of Defendants, JOHN or JANE DOE 1-10, as such knowledge is within the exclusive possession of Defendants.

16. The names JOHN or JANE DOE 1-10 are fictitious and meant as placeholders for the Police Officers who (1) falsely arrested, (2) assaulted, battered, and handcuffed, (3) maliciously prosecuted, (4) ignored or disregarded immediately available exculpatory evidence, (5) failed to intervene and prevent the other Defendants from doing the same and who (6) aided, abetted, assisted, and acted in concert with the other defendants to do the same.

17. At all relevant times herein, Defendants, including VANBRAKLE and JOHN or JANE DOE 1-10, were acting as agents, servants, and employees of the City of New York, or the NYPD. Defendants, including VANBRAKLE and JOHN or JANE DOE 1-10, are being sued in their individual and official capacities.

18. At all relevant times herein, Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City or State of New York.

FACTUAL CHARGES

19. On or about November 18, 2022, at approximately 8:00 p.m., in the vicinity of the building located at 223-24 106th Avenue Queens, New York, Plaintiff was illegally targeted for adverse police action, by Defendants, including VANBRAKLE and JOHN or JANE DOE 1-10.

20. Defendants, including VANBRAKLE and JOHN or JANE DOE 1-10, never observed Plaintiff committing any crime or violation of the law.

21. Defendants, including VANBRAKLE and JOHN or JANE DOE 1-10, violently grabbed Plaintiff's hands and pulled him outside of his residence without probable cause, reasonable

suspicion, valid search or arrest warrant, or any justification whatsoever as to the commission of a crime on the part of Plaintiff.

22. Defendants, including VANBRAKLE and JOHN or JANE DOE 1-10, then grabbed Plaintiff about his body and extremities before violently contorting his arms and wrists behind his back to which applied metal handcuffs in an excessively tight fashion, causing him to suffer substantial pain and significant injury to his shoulders, back, neck, arms, bruises, mental anguish, shock, and significant emotional distress.

23. Said defendants conducted an illegal search of Plaintiff's person by rifling through his clothing and personal belongings and patting him down all over.

24. Plaintiff repeatedly requested that Defendants, including VANBRAKLE and JOHN or JANE DOE 1-10, loosen the handcuffs, because they were causing him substantial pain and discomfort due to their excessive tightness.

25. Defendants, including VANBRAKLE and JOHN or JANE DOE 1-10, ignored or disregarded immediately available exculpatory information that demonstrated that another individual and not Plaintiff had committed the subject criminal acts that Defendants falsely attributed to Plaintiff.

26. Prior to November 18, 2022, Plaintiff leased a storage unit to another individual.

27. When that individual did not pay Plaintiff the monthly rent to Plaintiff for the storage unit, Plaintiff placed the unit and the items inside up for auction.

28. Plaintiff publicized the fact that the contents were unknown and that they were up for auction.

29. Plaintiff had never entered the aforesaid storage unit nor had any knowledge of its contents as was publicized.

30. Members of the public attended the auction and cast bids on the contents of the storage container.

31. When the unit was purchased at the auction, contraband was discovered therein and immediately turned over to police.

32. Plaintiff attempted to provide and convey the name, contact information, rental records for the unit and paystubs evidencing that the storage unit and all of its contents were placed there by the person who had rented the unit, but Defendants, including VANBRAKLE and JOHN or JANE DOE 1-10, ignored or outright refused to look at it.

33. Defendants, including VANBRAKLE and JOHN or JANE DOE 1-10, removed Plaintiff to the 105th NYPD Precinct against his will, where Defendants fingerprinted, photographed, searched, and confined Plaintiff to a cell.

34. Plaintiff was then transported to the Queens County Central Booking where he remained in a disgusting cell until his arraignment.

35. Defendants signed or caused to be signed a criminal complaint against Plaintiff, in which they knowingly affirmed the truth of the fabricated allegations against Plaintiff.

36. After arraignment, Plaintiff was remanded to Rikers Island in East Elmhurst, New York where he languished for more than a month and was subjected to searches, strip searches with attendant cavity inspections, gratuitous assaults and batteries, countless Civil Rights violations, fear of being assaulted by Correction Officers and other inmates, and all the attendant indignities attributable to wrongful incarceration.

37. Plaintiff's charges were dismissed and sealed pursuant to, *inter alia*, CPL 160.50 on April 24, 2023, which constituted a termination of the criminal proceedings in favor of the accused.

38. Defendants, including VANBRAKLE and JOHN or JANE DOE 1-10, arrested and caused a criminal prosecution to be initiated against Plaintiff, because of their desires to use Plaintiff's arrest and criminal prosecution to incur additional overtime compensation, benefits and favor from the superior officers, to avoid adverse consequences associated with failing to meet NYPD departmental arrest quotas, and also to conceal their egregious violations of proper police procedures and gross misconduct, including their fabrications of non-existent observations, evidence and information.

39. Defendants, including VANBRAKLE and JOHN or JANE DOE 1-10, arrested, applied excessive force, and initiated a malicious prosecution against Plaintiff in retaliation for Plaintiff's exertion of his constitutional right to freely express his opinion and inquiries, namely Plaintiff's displeasure with the manner in which Defendants approached and addressed him and his request for an explanation as to why Defendants were arresting him despite the fact he presented them with proof that he was not engaged in criminal acts and further presented the contact information for the true perpetrator.

40. As a result, Plaintiff developed a severe fear of police officers, which prevented him from venturing from his house for a period of time and has effectively permanently chilled his desire and ability to communicate with police officers.

41. Defendants, including VANBRAKLE and JOHN or JANE DOE 1-10, engaged in a conspiracy to falsely arrest and maliciously prosecute Plaintiff by personally conferring with each other, regarding the fabrication of the aforementioned non-existent evidence and observations, as well the manner and means by which said fabrications would be forwarded to the District Attorney's Office.

42. Plaintiff asserts that the Defendants, including VANBRAKLE and JOHN or JANE DOE 1-10, who violated Plaintiff's civil rights, are part of a larger pattern and practice of similar misconduct, which is so widespread, pervasive, and consistent throughout the NYPD and the City of New York that the commission such constitutionally violative behavior has become tantamount to an official policy or custom within the NYPD and City of New York or, at the very least, conclusive evidence that the City and the NYPD have either tacitly approved of such egregious wrongdoings or that they have become deliberately indifferent to the civil rights of those who may come into contact with their police officers.

43. The individually named Defendants herein, as well as other officers serving in the employ of the NYPD and City of New York, have blatantly, shamelessly, consistently, and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by Constitution of the United States, in addition to the laws and Constitution of the State of New York, all without incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of the NYPD, the City of New York and their respective policymakers and supervisors.

44. *The New York Times*, as well as numerous other reputable journalistic enterprises, have reported on the widespread corruption within the NYPD and City of New York, particularly the incredibly disconcerting proclivity of many NYPD officers to lie about subject matters that are materially relevant to criminal prosecutions, including the complete fabrication of arrest evidence and witnesses. Also detailed, is the NYPD's obstinate refusal to effectuate corrective or preventive measures to combat the inevitable recurrence of such misdeeds, and perhaps most troubling, the NYPD's alarming tendency to, instead, reward and promote these officers, including those who were inculcated via incontrovertible evidence, such as video evidence.

45. On March 18, 2018, *The New York Times* published an explosive article, entitled “Promotions, Not Punishments for Officers Accused of Lying,” written by Joseph Goldstein. Mr. Goldstein shines a light on the multitude of flaws within the CCRB and the NYPD, highlighting the fact that the substantiation of a claim against an officer will invariably rely on the presence of incontrovertible proof against the officer. Due to the rarity availability of this type of evidence, an alarmingly small percentage of officer misconduct claims are substantiated. The CCRB is further handicapped by a terribly designed system that requires evidence of a virtually indisputable nature to substantiate any claim against an officer. The article also details the NYPD’s persistent reluctance to investigate or discipline officers who lie and even posits that this reluctance is a significant cause of the lying pandemic within the NYPD. The article references various officers and detectives who were the subject of credible accusations relating to the officers’ intentionally false statements, with some allegations coming from federal and state judges.

46. On September 12, 2019, *The New York Times* published another article by Joseph Goldstein, entitled “Officers Said They Smelled Pot. The Judge Called Them Liars.” Unsurprisingly, this article dealt with the unusually high frequency of officers using the odor of marijuana to excuse a search that conspicuously does not result in the recovery of any marijuana. It should not require an article in *The New York Times* to call attention to such patently disingenuous tactics, but has become necessary for a variety of reasons, including the NYPD’s failure to correct such behavior, the willingness of prosecutors and judges to credit the lying officers and the increasing rate of occurrence.

47. On April 24, 2019, *The New York Times* published an article, entitled “Detective’s Lies Sent Three People to Prison, Prosecutors Charge,” by Sean Piccolo, detailing the lies of NYPD Second Grade Detective Joseph Franco and how those lies resulted in the imprisonment of at least

three innocent people. The article described how Det. Franco lied about observing drug transactions on at least three separate occasions, lies that were only uncovered through contradictory video evidence. Det. Franco's lies resulted in the innocent individuals each being sentenced to prison terms in excess of one-year.

48. Other articles include: (i) "Testilying' by Police: A Stubborn Problem.," by Joseph Goldstein, *The New York Times*, March 18, 2018; (ii) "New York Detective Charged with Faking Lineup Results," by Joseph Goldstein, *The New York Times*, February 17, 2018; (iii) "He Excelled as a Detective, Until Prosecutors Stopped Believing Him," by Joseph Goldstein, *The New York Times*, October 17, 2017; (iv) "Review Board Notes Rise in New York Police Officers' False Statement," by J. David Goodman, *The New York Times*, May 14, 2015; (v) "In Brooklyn Gun Cases, Suspicion Turns to the Police," by Stephanie Clifford, *The New York Times*, December 11, 2014; (vi) "Detective is Found Guilty of Planting Drugs," by Tim Stelloh, *The New York Times*, November 1, 2011; and (vii) "The Drugs? They Came from the Police," by Jim Dwyer, *The New York Times*, October 13, 2011.

49. The NYPD has a longstanding and ignominious record of failing to discipline its officers, or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York Times* published an article, entitled "2,495 Reports of Police Bias. Not One Was Deemed Valid by the N.Y.P.D." This article reported that within the last five (5) years, almost 2,500 separate individuals have filed formal complaints with the NYPD alleging that an officer acted with bias toward them, with not a single one being substantiated by the NYPD. Such a finding is plainly incredible and obviously the result of deliberately poor or nonexistent investigatory protocols. The report further impugned the NYPD's commitment to combat the prejudices and the biases exhibited by many of its officers.

50. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have imposed, tacitly approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in Plaintiff's arrest without probable cause.

51. Upon information and belief, the NYPD, the City of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion or the appropriate amount of force to be used.

52. Defendants' actions, pursuant to Plaintiff's underlying arrest, which occurred without even the semblance of probable cause, were so blatantly violative of Plaintiff's civil rights that the tacit approval of identical or similar acts by the policymakers or supervisors of the NYPD and the City of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with Defendants, should be inferred, because such flagrant deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD and City of New York.

53. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD, City of New York and their respective policymakers, supervisors, police officers or employees, will become known after the completion of discovery, as such information is presently within the exclusive possession of Defendants, the NYPD and City of New York.

54. Upon information and belief, the personnel files, records and disciplinary histories of the officer Defendants will reveal a history of Constitutional violations indicative of Defendant City's knowledge that the individual officer Defendants were unfit for employment as NYPD officers, or

for employment in general, and that the probability of the individually named Defendants committing similar violations in the future was extremely high.

55. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City and the NYPD were fully aware of Defendants' past constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for employment in general, and that the NYPD and City of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including Defendants, including VANBRAKLE and JOHN or JANE DOE 1-10.

56. Upon information and belief, the individually named Defendants have combined to be named as Defendants in numerous lawsuits that have accused them of committing violations similar or identical to those alleged herein, all of which have resulted no disciplinary or corrective action of any kind.

57. Upon information and belief, the NYPD and City of New York and have failed, or outright refused, to correct the individually named Defendants' predilections to engage in unconstitutional behavior or attempt to prevent the recurrence of such misconduct.

58. The aforementioned acts of Defendants, including VANBRAKLE and JOHN or JANE DOE 1-10, directly or proximately resulted in the deprivation or violation of Plaintiff's civil rights, as guaranteed and protected by the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, as well as the laws and Constitution of the State of New York.

59. As a direct or proximate result of said acts, Plaintiff was caused to suffer the loss of his liberty, irreparable reputational harm, loss of earnings and potential earnings, physical injury, as well as severe and permanent emotional distress, including fear, embarrassment, humiliation, traumatization, frustration, extreme inconvenience, and anxiety.

FIRST CAUSE OF ACTION

Freedom of Speech Retaliation Claim Under
New York State Law

60. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

61. Plaintiff engaged in speech and activities that were protected by section 8, of Article I to the constitution of the State of New York.

62. Defendants committed impermissible or unlawful actions against Plaintiff that were motivated or substantially caused by Plaintiff's constitutionally protected speech or activities.

63. Defendants' retaliatory actions against Plaintiff resulted in the deprivation of his liberty and the initiation of criminal charges against him.

64. Defendants' retaliatory actions adversely affected Plaintiff's protected speech or activities by physically or procedurally preventing him from further pursuing said protected speech or activities or by chilling his desire to further participate or engage in such protected speech or activities.

65. Accordingly, Plaintiff's right to engage in protected speech and activities, guaranteed and protected by section 8, of Article I to the constitution of the State of New York was violated by Defendants and thus, Defendants are subject to liability for violations of the constitution of the State of New York and violations New York City Human Rights Law under NYC Admin Code §§ 8-801 – 8-806.

66. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoings, under the doctrine of *respondeat superior*.

67. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTION

First Amendment Retaliation Claim Under
42 U.S.C. § 1983 *Against* Individual NYPD Defendants

68. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

69. Plaintiff engaged in speech and activities that were protected by the First Amendment to the United States Constitution.

70. Defendants committed impermissible or unlawful actions against Plaintiff that were motivated or substantially caused by Plaintiff's constitutionally protected speech or activities.

71. Defendants' retaliatory actions against Plaintiff resulted in the deprivation of his liberty and the initiation of criminal charges against him.

72. Defendants' retaliatory actions adversely affected Plaintiff's protected speech or activities by physically or procedurally preventing him from further pursuing said protected speech or activities, or by chilling his desire to further participate or engage in such protected speech or activities.

73. Accordingly, Plaintiff's right to engage in protected speech and activities, as guaranteed and protected by the First Amendment to the United States Constitution, was violated by Defendants.

74. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION

Unlawful Search & Seizure Under

New York State Law

75. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

76. Defendants subjected Plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

77. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

78. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

79. The unreasonable searches and seizures to Plaintiff's person and property were not otherwise privileged.

80. Accordingly, Defendants violated Plaintiff's right to be free from unreasonable searches and seizures, pursuant to section 12, of Article I to the constitution of the State of New York and section 8, Article II, of the New York Civil Rights Law. Defendants are subject to liability for violations of the constitution of the State of New York and violations New York City Human Rights Law under NYC Admin Code §§ 8-801 – 8-806.

81. Defendants CITY, as employer of the individual Defendants, are responsible for their wrongdoings under the doctrine of *respondeat superior*.

82. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION

Unlawful Search & Seizure Under
42 U.S.C. § 1983 *Against* Individual NYPD Defendants

83. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

84. Defendants subjected Plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

85. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

86. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

87. The unreasonable searches and seizures to Plaintiff's person and property were not otherwise privileged.

88. Accordingly, Defendants violated Plaintiff's right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution.

89. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION

False Arrest & False Imprisonment Under
New York State Law

90. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

91. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without a valid warrant or probable cause.

92. Plaintiff was conscious of his confinement.

93. Plaintiff did not consent to his confinement.

94. Plaintiff's arrest and false imprisonment was not otherwise privileged.

95. Defendants are subject to liability for violations of the constitution of the State of New York and violations New York City Human Rights Law under NYC Admin Code §§ 8-801 – 8-806.

96. Defendants CITY, as employer of the individual Defendants, are responsible for their wrongdoings under the doctrine of *respondeat superior*.

97. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTION

False Arrest & False Imprisonment Under
42 U.S.C. § 1983 *Against* Individual Defendants

98. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

99. The Defendants violated the Fourth and Fourteenth Amendments to the Constitution of the United States by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.

100. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.

101. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.

102. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION

Assault & Battery Under
New York State Law

103. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

104. At all relevant times, Defendants caused Plaintiff to fear for his physical well-being and safety and placed him in apprehension of immediate harmful and/or offensive touching.

105. Defendants engaged in and subjected Plaintiff to immediate harmful or offensive touching and battered him without his consent or justification.

106. Defendants are subject to liability for violations of the constitution of the State of New York and violations New York City Human Rights Law under NYC Admin Code §§ 8-801 – 8-806.

107. Due to the intentional, willful and unlawful acts of Defendants, Plaintiff suffered damages.

108. Defendants CITY, as employer of the individual Defendants, are responsible for their wrongdoings under the doctrine of *respondeat superior*.

109. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 *Against* Individual NYPD Defendants

110. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

111. The Defendants violated Plaintiff's rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.

112. Defendants engaged in and subjected Plaintiff to immediate harmful or offensive touching and battered him without his consent.

113. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

114. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

115. Defendants initiated the prosecution against Plaintiff.

116. Defendants lacked probable cause to believe Plaintiff was guilty or that the prosecution could succeed.

117. Defendants acted with malice, which, in the absence of probable cause, may be inferred.

118. The prosecution was terminated in favor of Plaintiff when all criminal charges were unconditionally dismissed and sealed on the merits, pursuant to sections 160.50 or 160.60 of the New York Criminal Procedure Law.

119. Due to the intentional, willful and unlawful acts of Defendants, Plaintiff suffered significant damages.

120. Defendants are subject to liability for violations of the constitution of the State of New York and violations New York City Human Rights Law under NYC Admin Code §§ 8-801 – 8-806.

121. Defendants City, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

122. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 *Against* Individual Defendants

123. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

124. Defendants initiated the prosecution against Plaintiff.

125. Defendants lacked probable cause to believe Plaintiff was guilty or that the prosecution would succeed.

126. Defendants acted with malice, which, in the absence of probable cause, may be inferred.

127. The prosecution was terminated in Plaintiff's favor when all criminal charges were unconditionally dismissed and sealed on the merits, pursuant to sections 160.50 or 160.60 of the New York Criminal Procedure Law.

128. Accordingly, Defendants violated Plaintiff's Fourth and Fourteenth Amendment rights.

129. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

130. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

131. Defendants arrested, detained and caused a criminal prosecution to be initiated or maintained against Plaintiff to compel the compliance or forbearance of some act.

132. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.

133. Defendants intended to inflict substantial harm upon Plaintiff.

134. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.

135. Defendants are subject to liability for violations of the constitution of the State of New York and violations New York City Human Rights Law under NYC Admin Code §§ 8-801 – 8-806.

136. Defendants CITY, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

137. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 *Against* Individual Defendants

138. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

139. Defendants arrested, detained and caused a criminal prosecution to be initiated or maintained against Plaintiff to compel the compliance or forbearance of some act.

140. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.

141. Defendants intended to inflict substantial harm upon Plaintiff.

142. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.

143. Defendants' actions deprived Plaintiff of his constitutional rights to free from illegal searches and seizures and to not be deprived of his liberty without the due process of law in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

144. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION

Denial of Right to Due Process Under
New York State Law

145. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

146. Defendants fabricated false evidence to be used against Plaintiff that was likely to influence a jury's decision.

147. Defendants forwarded said false information to prosecutors within the District Attorney's Office.

148. Defendants' actions resulted in post-arraignment restrictions and deprivations upon Plaintiff's liberty and freedom of movement.

149. Accordingly, Defendants deprived Plaintiff of his civil rights, pursuant to sections 1, 2, 6 and 9, of Article I to the constitution of the State of New York, as well sections 10 and 12, of Article II, of the New York Civil Rights Law. Defendants are subject to liability for violations of the constitution of the State of New York and violations New York City Human Rights Law under NYC Admin Code §§ 8-801 – 8-806.

150. Defendants CITY, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

151. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTEENTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

152. The above paragraphs are here incorporated by reference as though fully set forth herein.

153. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

154. Defendants are subject to liability for violations of the constitution of the State of New York and violations New York City Human Rights Law under NYC Admin Code §§ 8-801 – 8-806.

155. Defendants CITY, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

156. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTEENTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 *Against* Individual Defendants

157. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

158. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

159. Accordingly, the defendants who failed to intervene violated the First, Fourth, Fifth, Sixth or Fourteenth Amendments.

160. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SIXTEENTH CAUSE OF ACTION

Fabricated Evidence Claim Under
42 U.S.C. § 1983 *Against* Individual Defendants

161. The above paragraphs are here incorporated by reference as though fully set forth herein.

162. Defendants deliberately fabricated evidence against the Plaintiff and that as a result of this evidence being used against him, he was deprived of his rights to Due Process of Law or Fair Trial.

163. As a result, Plaintiff sustained injuries to his person, was deprived of his liberty or was deprived of rights or privileges of citizens of the United States.

164. Defendants fabricated evidence in order to support their false arrest, detention and prosecution of the Plaintiff.

165. Defendants used this fabricated evidence and informed the prosecution that the fabricated evidence was true and accurate despite the fact that knew that the fabricated evidence was not true.

166. As a result, the Plaintiff was deprived of his rights, pursuant to the Fifth, Sixth or Fourteenth Amendments to the Constitution of the United States.

167. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SEVENTEENTH CAUSE OF ACTION

Negligent Hiring, Training, Retention or Supervision Under
New York State Law

168. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

169. Defendants CITY owed duties of care to Plaintiff to adequately hire, train, retain or supervise their employees, including the individually named defendants herein.

170. Defendants CITY breached those duties of care.

171. Defendants CITY placed the individually named defendants in positions where they could inflict foreseeable harm.

172. Defendants CITY knew or should have known of that their employees, including the individually named defendants herein, exhibited substantial propensities for committing civil rights violations against members of the public, such as Plaintiff.

173. Defendants CITY failed to take reasonable measures in hiring, training, retaining or supervising their employees, including the individually named defendants herein, that would have prevented the aforesaid injuries to Plaintiff.

174. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

EIGHTEENTH CAUSE OF ACTION

Violation of Victims of Violent Crime Protection Act Under
New York City Law

175. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

176. Defendants' acts or series of acts constituted a misdemeanor or felony against Plaintiff, as defined in state or federal law which presented a serious risk of physical injury to Plaintiff, whether or not such acts have actually resulted in criminal charges, prosecution or conviction.

177. Accordingly, Defendants committed a crime of violence against Plaintiff and violated Plaintiff's rights, pursuant to the section 10-403 of the Administrative Code of the City of New York.

178. Defendants are subject to liability for violations of the constitution of the State of New York and violations New York City Human Rights Law under NYC Admin Code §§ 8-801 – 8-806.

179. Defendants CITY, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

180. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

NINETEENTH CAUSE OF ACTION

Municipal “*Monell*” Liability Under
42 U.S.C. § 1983 *Against* Defendant City

181. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

182. Defendant CITY maintained a policy or custom that caused Plaintiff to be deprived of his civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as Plaintiff, to such violative behavior.

183. Defendant CITY's employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

184. Defendant CITY, its policymakers and supervisors failed to provide adequate training or supervision to their subordinates, to such an extent that is tantamount to the City's deliberate

indifference toward the rights of those who may come into contact with Defendant City's employees.

185. Defendant CITY's employees engaged in such egregious and flagrant violations of Plaintiff's Constitutional rights that the need for enhanced training or supervision is obvious and equates to a display of deliberate indifference by Defendant CITY and its policymakers toward the rights of individuals, who may come into contact with Defendant CITY's employees.

186. Defendant CITY's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

187. Defendant CITY's conduct caused Plaintiff to be deprived of his civil rights, as guaranteed by the Constitution of the United States *vis-à-vis* the First, Fourth, Fifth, Sixth, Eighth or Fourteenth Amendments thereto.

188. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged

WHEREFORE, Plaintiff respectfully requests judgment against defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- d) On the Fourth Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) On the Thirteenth Cause of Action, in a sum of money exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- n) On the Fourteenth Cause of Action, in a sum of money exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- o) On the Fifteenth Cause of Action, in a sum of money exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- p) On the Sixteenth Cause of Action, in a sum of money exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- q) On the Seventeenth Cause of Action, in a sum of money exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- r) On the Eighteenth Cause of Action, in a sum of money exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- s) On the Nineteenth Cause of Action, in a sum of money exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- t) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
- u) Awarding Plaintiff reasonable attorney's fees and costs, pursuant to 42 U.S.C. § 1988, the New York Civil Rights and Executive Laws, in addition to the Administrative Code of the City of New York; together with the costs and disbursements of this action.

JURY DEMAND

Plaintiff hereby demands a trial by jury.

Dated: Bayside, New York
July 23, 2024

SIM & DEPAOLA, LLP
Attorneys-at-Law
42-40 Bell Boulevard – Suite 405
Bayside, New York 11361
(718) 281-0400

/s/ Sameer Nath
Sameer Nath, Esq.
Attorneys for Plaintiff

VERIFICATION

STATE OF NEW YORK)
 : ss.:
COUNTY OF QUEENS)

RONNIE ERO, being duly sworn, deposes and says:

I am the Plaintiff in this action, and I have read the foregoing COMPLAINT. The same is true to my own knowledge, except as to the matters therein stated to be upon information and belief, and as to those matters, I believe them to be true.


RONNIE ERO

Sworn to before me on the
26 day of July, 2024.



Notary Public

JUNYA ZENG
Notary Public, State of New York
No. 01ZE6411578
Qualified in Queens County
Commission Expires Nov. 30, 2024